



POLICE DEPARTMENT

August 28, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202301978 (Incident Date: March 7, 2023) regarding Police Officer Benjamin Roman, Tax No. 955410 (DADS No. 2024-31128)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202301978, pertaining to Police Officer Benjamin Roman. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Roman would be detrimental to the Police Department's disciplinary process.

In this case, Officer Roman and other members of the service stopped the complainant for violations of NYS Vehicle and Traffic Law and NYC Administrative Code. In addition to CCRB's investigation into this matter, the Department had also conducted a parallel investigation into the allegations of improper stop and threat to seize property by Officer Roman. Upon review of the available evidence, the Police Commissioner finds that Officer Roman's actions were within guidelines. Officer Roman had a sufficient legal basis to detain the complainant and was correct in informing the complainant that his vehicle may be seized due to his violations.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, due to a parallel investigation, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Police Officer Roman for the alleged misconduct.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



September 6, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202301978 (Incident Date: March 7, 2023) involving Police Officer Benjamin Roman, Tax No. 955410 (DADS No. 2024-311288)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated August 28, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that in the interest of justice, you intend to retain jurisdiction over this matter and impose no disciplinary action against Police Officer Benjamin Roman for his alleged misconduct. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing CCRB’s request for Charges and Specifications and having analyzed the facts and circumstances in this matter, you have “determined that to pursue Charges and Specifications against Police Officer Roman would be detrimental to the Police Department’s disciplinary process.” CCRB disagrees with this determination.

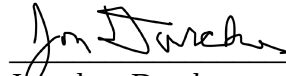
Although § 87(2)(b) vehicle was parked on the crosswalk and thus could have received a summons or have his vehicle towed, the officers who initiated the stop, elected not to issue § 87(2)(b) any summons or tow his vehicle, and had ultimately returned to their vehicle, thus signifying an end to the law enforcement action. There was therefore no reason or legal basis for PO Roman to have returned to § 87(2)(b) especially when the officers who initiated the stop had determined that no further action was required, and § 87(2)(b) was in the process of complying with one of the initial officer’s order that he move his vehicle from the crosswalk.

PO Roman’s BWC footage shows him reapproaching § 87(2)(b) and issuing him a parking summons shortly after § 87(2)(b) requested PO Roman’s name, and again further shows PO Roman informing § 87(2)(b) that he was being “stopped again” because he had requested PO

Roman's name. At no point does the footage depict PO Roman providing any other reason for approaching § 87(2)(b) a second time. PO Roman's decision to detain, threaten to tow, and issue § 87(2)(b) the parking violation summons were unreasonable, unjustified and retaliatory in nature.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against PO Roman in this matter.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Jon Darche", written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

September 6, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

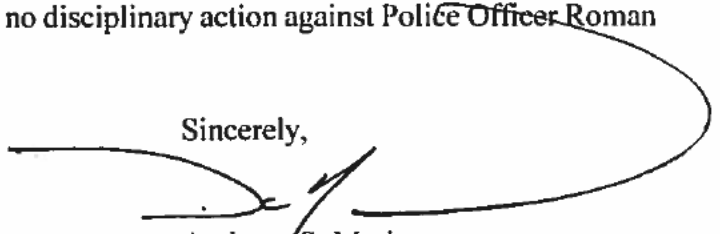
Re: CCRB Case No. 202301978 (Incident Date: March 7, 2023) regarding Police Officer Benjamin Roman, Tax No. 955410 (DADS No. 2024-31128)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated September 6, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Benjamin Roman. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Roman for the reasons expressed in my August 28, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs to impose no disciplinary action against Police Officer Roman for the alleged misconduct.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office